

Ashok Kumar v. Uttar Pradesh Power Shakti Bhawan

High Court of Judicature at Allahabad · Division Bench · 9 October 2018 · Writ-C No. 33952 of 2018 · **Writ dismissed; incorrect-bill grievance relegated to Clause 6.5.**

HEADNOTE

A consumer alleging that two electricity bills were issued for the same period must first raise the grievance of an incorrect bill before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. The High Court declined to intervene in writ jurisdiction in view of that alternative remedy and dismissed the petition.

FACTUAL SUMMARY

Ashok Kumar filed a writ petition in the Allahabad High Court against Uttar Pradesh Power Shakti Bhawan and others, alleging that two electricity bills had been issued to him for the same period. After hearing counsel, the Court did not inquire into whether the bills were duplicate or otherwise incorrect. It treated the grievance as one of an incorrect electricity bill and disposed of the petition solely on the availability of the statutory billing-objection route.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

incorrect-bill-alternative-remedy

HOLDING

If an electricity bill issued to a consumer is incorrect, including where two bills are said to have been issued for the same period, the consumer may raise the grievance under Clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer; the High Court will not intervene in writ jurisdiction in view of that alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TWO ELECTRICITY BILLS FOR THE SAME PERIOD WERE IN FACT INCORRECT OR DUPLICATE

The Court did not examine the bills on merits. ¶ 1